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Case Number: 21STCV08495 Hearing Date: August 14, 2026 Dept: 408

Defendants Crush Materials

Corporation and Christine Rush's Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Melissa Davis is GRANTED, in part, as to Issues Nos. 1-2, 4-8, 10, and 12-25; and DENIED, in part, as to Issues Nos. 3, 9, 11, and 16.

I.

BACKGROUND

On March 4, 2021, Plaintiffs Eric Marquez ("Marquez") and Melissa Davis ("Davis", collectively "Plaintiffs") filed a complaint against Defendants Crush Materials Corporation ("Crush"), Associated Ready Mixed Concrete, Inc. ("Ready Mixed"), and Christine Rush ("Rush", collectively "Defendants") alleging causes of action for:

1.

Failure

to Pay Proper Wages;

2.

Wrongful

Termination;

3.

Failure

to Provide Rest Periods;

4.

Retaliation
for Exercise of Rights to File Complaint;

5.
Fraudulent
Business Practices;

6.
Failure
to Pay Overtime;

7.
Unfair
Business Practices;

8.
Discrimination
Based on Gender;

9.
Discrimination
Based on Sexual Orientation; and

10.
Discrimination
Based on Race.

On September 29,
2021, Ready Mixed filed an answer to
Plaintiffs' complaint.

On October 5, 2021, pursuant to Plaintiffs' request, default was entered
against Rush.

On January 20, 2022, the court granted Rush's Motion to Set Aside/Vacate
Default.

On April 8, 2022, the court denied Rush's Petition to Compel Arbitration and
Stay Proceedings. On April 13, 2022,
Rush filed a Notice of Appeal as to the denial of her Petition to Compel

Arbitration and Stay Proceedings. On

July 12, 2024, Remittitur was filed affirming the court's order denying Rush's Petition to Compel Arbitration and Stay Proceedings.

On January 9, 2025, pursuant to Plaintiffs' request, default was entered against Crush.

On June 23, 2025, the court granted Crush's Motion to Set Aside/Vacate Default.

On July 3, 2025, Crush and Rush filed an answer to Plaintiffs' complaint.

On October 7, 2025, the court denied Ready Mixed's Motion to Strike Plaintiffs' demand for jury trial.

On March 12, 2026, Crush and Rush ("Moving Defendants") filed this Motion for Summary Judgment, or in the alternative, Summary Adjudication against Davis. On June 12, 2026, Davis filed an opposition. On June 25, 2026, Davis filed an amended opposition.[1] On July 9, 2026, Moving Defendants filed a reply.

On August 5, 2026, the court granted in part and denied in part Moving Defendants' Motion for Summary Judgment, or in the alternative, Summary Adjudication against Marquez.

II.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of fact and that he is entitled to judgment as a matter of law. That is

because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation omitted].)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the reexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Aguilar, supra, 25 Cal.4th at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

"The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility." (Binder, supra, 75 Cal.App.4th at 840 [citations omitted]; see also Weiss v. People ex rel. Dep't of Transp. (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

III.

DISCUSSION

Moving Defendants seek summary judgment on the first through ninth causes of action, in addition to the claim for punitive damages, alleged in the complaint[2] as to Davis.

In the alternative, Moving Defendants move for summary adjudication on the following issues:

i.

First Cause of Action for Failure to Pay Proper Wages

[Issue No. 1] The First Cause of

Action for failure to pay proper wages fails as a matter of law because Davis is unable to establish she was owed any unpaid wages;

ii.

Second Cause of Action for Wrongful Termination

[Issue No. 2] The Second Cause

of Action for wrongful termination fails as a matter of law because the underlying discrimination and retaliation claims fail;

iii.

Third Cause of Action for Failure to Provide Rest
Periods

[Issue No. 3] The Third Cause of

Action for failure to provide rest periods fails as a matter of law because Davis voluntarily waived her rest breaks;

iv.

Fourth Cause of Action for Retaliation for Exercise of
Rights to File Complaint

[Issue No. 4] The Fourth Cause

of Action for retaliation for exercise of rights to file complaints fails as a matter of law because Davis is unable to establish she suffered any adverse employment actions;

[Issue No. 5] The Fourth Cause

of Action for retaliation for exercise of rights to file complaints fails as a matter of law because there is no causal link between any alleged protected

activity and the purported adverse employment action;

[Issue No. 6] The Fourth Cause

of Action for retaliation for exercise of rights to file complaints fails as a matter of law because Davis failed to exhaust administrative remedies against Moving Defendants;

[Issue No. 7] The Fourth Cause

of Action for retaliation for exercise of rights to file complaints fails as a matter of law because Davis' claims against Moving Defendants are time barred;

[Issue No. 8] The Fourth Cause

of Action for retaliation for exercise of rights to file complaints fails as a matter of law because Rush cannot be held personally liable for the alleged claims;

v.

Fifth Cause of Action for Fraudulent Business Practices

[Issue No. 9] The Fifth Cause of

Action for fraudulent business practices fails as a matter of law because Davis' wage and hour claims fail;

vi.

Sixth Cause of Action for Failure to Pay Overtime

[Issue No. 10] The

Sixth Cause of Action for failure to provide overtime fails as a matter of law because Davis was not owed any unpaid overtime wages;

vii.

Seventh Cause of Action for Unfair Business Practices

[Issue No. 11] The

Seventh Cause of Action for unfair business practices fails as a matter of law because Davis' wage and hour claims fail;

viii.

Eighth Cause of Action for Discrimination Based on Gender

[Issue No. 12] The

Eighth Cause of Action for discrimination based on gender fails as a matter of law because Davis is unable to establish she suffered any adverse employment actions under the FEHA;

[Issue No. 13] The

Eighth Cause of Action for discrimination based on gender fails as a matter of law because there is no nexus between Davis' gender and the alleged adverse employment actions;

[Issue No. 14] The

Eighth Cause of Action for discrimination based on gender fails as a matter of law because the alleged adverse employment action of termination was due to the legitimate, non-discriminatory reason that Crush went bankrupt;

[Issue No. 15] The

Eighth Cause of Action for discrimination based on gender fails as a matter of law because Davis cannot introduce specific, substantial evidence demonstrating that Defendants' stated reasons for Davis' separation of employment was pretext for unlawful discrimination;

[Issue No. 16] The Eighth Cause

of Action for discrimination based on gender fails as a matter of law because Rush cannot be held personally liable for the alleged claims;

[Issue No. 17] The Eighth Cause

of Action for discrimination based on gender fails as a matter of law because Davis failed to exhaust administrative remedies against Rush;

[Issue No. 18] The Eighth Cause

of Action for discrimination based on gender fails as a matter of law because Davis claims against Rush are time barred;

ix.

Ninth Cause of Action for Discrimination Based on
Sexual Orientation

[Issue No. 19] The Ninth Cause

of Action for discrimination based on sexual orientation fails as a matter of

law because Davis' is unable to establish she suffered any adverse employment actions under the FEHA;

[Issue No. 20] The Ninth Cause of Action for discrimination based on sexual orientation fails as a matter of law because there is no nexus between Davis' sexual orientation and the alleged adverse employment actions;

[Issue No. 21] The Ninth Cause of Action for discrimination based on sexual orientation fails as a matter of law because the alleged adverse employment action of termination was due to the legitimate, non-discriminatory reason that Crush went bankrupt;

[Issue No. 22] The Ninth Cause of Action for discrimination based on sexual orientation fails as a matter of law because Davis cannot introduce specific, substantial evidence demonstrating that Defendants' stated reasons for Davis' separation of employment was pretext for unlawful discrimination;

[Issue No. 23] The Ninth Cause of Action for discrimination based on sexual orientation fails as a matter of law because Rush cannot be held personally liable for the alleged claims;

[Issue No. 24] The Ninth Cause of Action for discrimination based on sexual orientation fails as a matter of law because Davis failed to exhaust administrative remedies against Rush;

[Issue No. 25] The Ninth Cause of Action for discrimination based on sexual orientation fails as a matter of law because Davis' claims against Rush are time barred; and

x.

Claim for Punitive Damages

[Issue No. 26] Davis' claim for punitive damages fails as a matter of law because Davis cannot show that Moving Defendants engaged in malice, oppression, or fraud.

A.

Evidentiary Objections

The court declines to rule on the evidentiary objections submitted, pursuant to Code of Civil Procedure section 437c(q) (i.e., “[i]n granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion”). (Code Civ. Proc., § 437c, subd. (q).)

B.

Issues Nos. 12-18 – Discrimination

Based on Gender (8th Cause of Action)

Under the McDonnell Douglas burden-shifting framework, the plaintiff bears the initial burden of establishing a prima facie case for discrimination. (Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 860.) “Generally, the plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 355.) The burden then shifts to the employer to produce evidence of a nondiscriminatory reason for the adverse action. (Moore v. Regents of the University of California (2016) 248 Cal.App.4th 216, 235, citing Guz v. Bechtel National Inc. (2000) 24 Cal.4th 317, 355-356.) At that point, the burden shifts back to the employee to show that the employer’s stated reason was in fact a pretext for a discriminatory act. (Id., citing Guz, supra, 24 Cal.4th at 356.)

However, the McDonnell

Douglas framework is modified in a summary judgment motion for an employment discrimination case, wherein “the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff’s prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.” (Serri, supra, 226 Cal.App.4th at 861, quoting Hicks v. KNTV Television, Inc. (2008) 160 Cal.App.4th 994, 1003.)

“If the employer meets its initial burden, the burden shifts to the employee to ‘demonstrate a

triable issue by producing substantial evidence that the employer's stated reasons were untrue or pretextual, or that the employer acted with a discriminatory animus, such that a reasonable trier of fact could conclude that the employer engaged in intentional discrimination or other unlawful action.” (Id., quoting *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1038.)

Moving Defendants argue that Davis cannot establish that she suffered any adverse employment action because of her gender to support a claim for discrimination as the evidence demonstrates that Davis' termination was due to Crush's bankruptcy. (MSJ, at pp. 10-12, 14-15; Complaint, ¶ 82.) In support, Moving Defendants provide that Davis commenced her employment with Crush as a volumetric driver/operator in June 2016 and continued in that role until her separation from employment in November 2019; around the end of 2019, Crush separated from all its employees; on August 24, 2020, Crush filed for Chapter 7 Bankruptcy which concluded on May 19, 2021; and Crush was formally dissolved as of June 17, 2021. (Undisputed Material Fact (“UMF”), Nos. 1, 5-7.)

Moving Defendants further argue that Davis cannot establish that she suffered an adverse employment action based on Crush's alleged refusal to offer her health benefits as Davis admitted that she was never told she would be entitled to such and no other drivers employed by Crush received health benefits. (MSJ, at p. 12; UMF, Nos. 21-22; Complaint, ¶ 83.)

The court finds that Moving Defendants met their initial burden demonstrating a nondiscriminatory reason for Davis' termination and lack of health benefits. It is undisputed that Davis was terminated due to Crush's bankruptcy; that Crush terminated all of its employees during this time; and that Davis was not entitled to health benefits. (UMF, Nos. 5-7, 18, and 21-22.)

The burden shifts to Davis “to attack the employer's proffered reasons as pretexts for discrimination, or to offer any other evidence of discriminatory motive.” (Moore, *supra*, 248 Cal.App.4th at 235.)

In opposition, Davis fails to provide any disputing evidence demonstrating that the stated nondiscriminatory reasons were pretextual or that Crush acted with a discriminatory animus when terminating Davis or when Crush did not grant health benefits. (Opp., at pp. 14-15.) In fact, Davis fails

to cite to any evidence in response to Moving Defendants' separate statement. (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337 ["if it is not set forth in the separate statement, it does not exist."].)

Additionally, the court notes that individuals are not liable for management decisions later attacked as discriminatory or retaliatory. (Reno v. Baird (1998) 18 Cal.4th 640, 645-646; Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1173.) However, individuals may be held liable for their own harassment or for the maintenance of a hostile work environment. (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 710.) Pursuant to Reno and Jones, the court finds that Rush may not be liable for discrimination and retaliation under FEHA.

Accordingly, summary adjudication is granted as to the eighth cause of action.

C.

Issues Nos. 19-25 – Discrimination

Based on Sexual Orientation (9th Cause of Action)

The complaint asserts a claim for discrimination based on sexual orientation alleging that Davis was forced to drive hazardous, faulty mixers that were not fit to be used in the job while allowing her male counterparts to drive safer mixers after she submitted complaints of the safety risk and that other employees slandered Davis stating that they had a problem with her because "she is black, a woman, and gay." (Complaint, ¶¶ 86-87.)

Moving

Defendants argue that Davis fails to establish that she suffered an adverse employment action because of her sexual orientation based on the allegations presented. (MSJ, at pp. 12-13; UMF, Nos. 23-24.) Moving Defendants also argue that Davis admitted that the period which she was allegedly required to drive older trucks predated the summer of 2016 and thus outside the statute of limitations for a discrimination claim. (Ibid.) Moving Defendants further contend that Davis' termination was solely due to Crush's bankruptcy. (MSJ, at pp. 10-12, 14-15; UMF, Nos. 1, 5-7.)

“The term ‘adverse employment acts’ encompasses not only “ultimate” employment actions, such as hiring, firing, demotion or failure to promote,’ but also ‘the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee’s job performance or opportunity for career advancement.’ [Citation.]” (Meeks v. Autozone, Inc. (2018) 24 Cal.App.5th 855, 879.) On the other hand, “[m]inor or relatively trivial adverse actions or conduct by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment and are not actionable” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1054.)

The court finds that

Moving Defendants met their initial burden of demonstrating that Davis did not suffer an adverse employment action based on her sexual orientation as the allegations that she was required to drive faulty mixers and statement from other employees that “she is black, a woman, and gay” do not constitute acts that materially affect the terms, conditions, or privileges of her employment. The burden shifts to Plaintiff.

The court again

finds that Davis fails to carry her burden of demonstrating that the stated nondiscriminatory reasons were pretextual or that Crush

acted with a discriminatory

animus in opposition as Davis fails to cite any evidence or provide any

authority to raise a triable issue of fact. (Opp., at pp. 16-17.)[3] Moreover, as found above, Rush may not be liable for discrimination under

FEHA.

Accordingly, summary adjudication is granted as to the ninth cause of action.

D.

Issues Nos. 4-8 – Retaliation for

Exercise of Rights to File Complaint (4th Cause of Action)

“[I]n order to

establish a prima facie case of retaliation under [FEHA], a plaintiff must show

(1) he or she engaged in a “protected activity,” (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action. [Citations.] Once an employee establishes a prima facie case, the employer is required to offer a legitimate, nonretaliatory reason for the adverse employment action. [Citation.] If the employer produces a legitimate reason for the adverse employment action, the presumption of retaliation ‘drops out of the picture,’ and the burden shifts back to the employee to prove intentional retaliation.” (Yanowitz, supra, 36 Cal.4th at 1042.)

The framework of burden shifting under McDonnell

Douglas does not apply to a claim under Section 1102.5. (Lawson, supra, 12 Cal.5th at 718; see also Lab.

Code, § 1102.6.) Instead, the plaintiff bears the initial burden at trial “to establish, by a preponderance of the evidence, that retaliation for an employee’s protected activities was a contributing factor in a contested employment action.” (Lawson, supra, 12 Cal.5th at 718.) “Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.” (Ibid.) “[A] plaintiff does not need to show that the employer’s non-retaliatory reason was pretextual. Even if the employer had a genuine, non-retaliatory reason for its adverse action, the plaintiff still carries the burden assigned by statute if it is shown that the employer also had at least one retaliatory reason that was a contributing factor in the action.” (Id., at 715-716.)

As to the fourth

cause of action for retaliation under FEHA and Labor Code section 1102.5, Moving Defendants contend that Davis could not identify any adverse employment action taken against her based on the alleged filing of a CALTRANS complaint. (MSJ, at pp. 16-17; Complaint, ¶¶ 51-59.) In support, Moving Defendants provide that Davis testified that the only form of “retaliation” she believed she experienced was being called a “troublemaker” after she filed the CALTRANS complaint. (UMF, Nos. 32-33.)

The court finds

that Moving Defendants met their initial burden of demonstrating that Davis did not suffer an adverse employment action based on her alleged protected activity as calling her a “troublemaker” does not

constitute an act that materially affects the terms, conditions, or privileges of her employment to support a claim for retaliation. (Yanowitz, supra, 36 Cal.4th at 1054.) The burden shift to Davis.

In opposition,

Davis contends that the adverse employment action that forms the basis for her retaliation claim is the drastic reduction of Davis' hours which constitutes a constructive termination after filing her CALTRANS complaint. (Opp., at p. 8; UMF, Nos. 32-33.)

The court again

finds that Davis fails to carry her burden of raising a triable issue of fact.

The complaint does not allege that Davis was constructively terminated as a result of her CALTRANS complaint. (Complaint, ¶¶ 53-57; Laabs, supra,

163 Cal.App.4th at 1258.) Nevertheless, the court again finds that Moving Defendants demonstrated a nonretaliatory reason for Davis'

termination due to Crush's bankruptcy. (UMF, Nos. 1,

5-7.) Moreover,

as found above, Rush may not be liable for retaliation under FEHA.

Accordingly, summary adjudication is granted as to the fourth cause of action.

E.

Issue No. 2 – Wrongful Termination (2nd Cause of Action)

An employee has a common law right to sue for wrongful termination

“when he or she is discharged for performing an act that public policy would encourage, or for refusing to do something that public policy would

condemn.” (Gantt v. Sentry Insurance (1992) 1 Cal.4th 1083,

1090 [overruled on other grounds].) ““The elements of a claim

for wrongful discharge in violation of public policy are (1) an

employer-employee relationship, (2) the employer terminated the plaintiff's

employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (Nosal-Tabor

v. Sharp Chula Vista Medical Center (2015) 239 Cal.App.4th 1224,

1234-1235, quoting Yau v. Allen (2014) 229 Cal.App.4th 144,

154.)

Moving Defendants

argue that as Davis discrimination and retaliation claims fail, the wrongful termination cause of action similarly fails. (MSJ, at p. 18, fn. 6.) The court agrees. Moving Defendants demonstrate a legitimate reason for Davis' termination due to Crush's bankruptcy. (UMF, 1, 5-7.)

In opposition, Davis fails to raise a triable issue of fact for the same reasons mentioned above.

Accordingly, summary adjudication is granted as to the second cause of action.

F.

Issues Nos. 1 and 10 – Failure to Pay Proper Wages and Failure to Pay Overtime (1st and 6th Causes of Action)

Moving Defendants argue that the first cause of action for failure to pay proper wages and sixth cause of action to pay overtime fail because Davis' position as a volumetric mobile mixer truck driver is exempt from overtime laws. (MSJ, at pp. 20-21.) In support, Moving Defendants provide that California Industrial Welfare Commission Wage Order No. 1-2001, applicable to Crush as part of the manufacturing industry, exempts commercial drivers like Davis from overtime requirements because their hours are regulated by Title 13 of the California Code of Regulations. (Ibid.)

Wage Order No. 1-2001, Section 3(A)(2) provides that "[t]he provisions of this section are not applicable to employees whose hours of service are regulated by:

(a) The United States Department of Transportation Code of Federal Regulations, Title 49, Sections 395.1 to 395.13, Hours of Service of Drivers; or

(b) Title 13 of the California Code of Regulations, subchapter 6.5, Section 1200 and the following sections, regulating hours of drivers."

(Wage Order No. 1-2001, § 3,

subd. (A)(2).)

Title 13, Section 1200 provides that “the provisions of this chapter shall apply to vehicles listed in Vehicle Code Sections 545(a)(11), 34500 and 34500.1 and their operation.” (Cal. Code Regs., Tit. 13, § 1200, subd. (a).) Vehicle Code Section 34500 includes “[a] vehicle, or a combination of vehicles, transporting hazardous materials” and “[a] commercial motor vehicle with a gross vehicle weight rating of 26,001 or more pounds”. (Veh. Code, § 34500, subd. (g), (k).)

It is undisputed that throughout her employment with Crush, Davis operated a volumetric mobile mixer truck, a commercial motor vehicle designed to transport mixed concrete from Crush’s plant to construction job sites; and that Davis drove a volumetric mobile mixer truck exceeding 26,001 pounds Gross Vehicle Weight Rating (“GVWR”) throughout her employment. (UMF, Nos. 35, 36.) Thus, the overtime rules of Labor Code section 510 do not apply to Davis. (Collins v. Overnite Transportation Co., (2003) 105 Cal.App.4th 171, 174-181.)

Accordingly, summary adjudication is granted as to the first and sixth causes of action.

G.

Issue No. 3 – Failure to Provide Rest
Periods (3rd Cause of Action)

An employer must provide its employees with meal and rest breaks as mandated by statute, the Industrial Welfare Commission, the Occupational Safety and Health Standards Board, and the Division of Occupational Safety and Health. (Lab. Code, § 226.7.)

An employer satisfies its obligation of providing meal breaks “if it relieves its employees of all duty, relinquishes control over their activities and permits them a reasonable opportunity to take an uninterrupted 30-minute break, and does not impede or discourage them from doing so.” (Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1040.) “[A]n employer may not undermine a formal policy of providing meal breaks by pressuring employees to perform their duties in ways that omit breaks.” (Ibid.) “On the other hand, the employer is not obligated to police meal breaks and ensure no work thereafter is performed. Bona fide relief from duty and the relinquishing of control

satisfies the employer's obligations, and work by a relieved employee during a meal break does not thereby place the employer in violation of its obligations and create liability for premium pay." (Id., at 1040-1041.)

Moving Defendants argue that the rest break claim fails as Davis voluntarily skipped her rest periods as she was under the impression "everything's on the go," despite not being specifically told to skip rest breaks. (MSJ, at pp. 21-22; UMF, No. 37.) Moving Defendants also provide that Davis admitted she did not inform anyone at Crush, that she was unable to take rest breaks. (UMF, No. 38.)

The court finds that Moving Defendants fail to carry their initial burden of demonstrating that the claim for failure to provide rest periods fails. A triable issue of fact exists regarding whether Crush relieved Davis of all duties allowing her to take her rest periods and whether Davis voluntarily skipped her rest breaks. Davis' testimony could lead a reasonable trier of fact to find that Crush pressured employees to perform their duties in ways that omit breaks. (UMF, Nos. 37-38.)

Accordingly, summary adjudication is denied as to the third cause of action.

H.

Issue Nos. 9 and 11 – Fraudulent

Business Practices and Unfair Business Practices (5th and 7th Cause of Action)

Moving Defendants argue that Davis' derivative claims for fraudulent business practices and unfair business practices fails as the underlying Labor Code violations fail for the reasons mentioned above. (MSJ, at p. 22.)

The court notes that summary adjudication was denied as to the third cause of action for failure to provide rest periods. Accordingly, the derivative claims survive as alleged in connection with the third cause of action.

Accordingly, summary adjudication is denied as to the fifth and seventh causes of action.

I.

Issue No. 16 – Punitive Damages

Moving Defendants

argue that the request for punitive damages fails because there is no evidence of malice, fraud, or oppression and Davis' causes of action fail for the reasons discussed above. (MSJ, at pp. 22-23.)

The court finds that

Moving Defendants fail to meet their initial burden of demonstrating that Davis' request for punitive damages fails as the fraudulent business practices and unfair business practices remain and could support punitive damages.

Accordingly, summary adjudication is denied as to Issue No. 16.

IV.

CONCLUSION

Defendants Crush Materials

Corporation and Christine Rush's Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Melissa Davis is GRANTED, in part, as to Issues Nos. 1-2, 4-8, 10, and 12-25; and DENIED, in part, as to Issues Nos. 3, 9, 11, and 16.

[1]

The court exercises its discretion to consider the amended opposition and supporting documents. However, the court will not consider any argument or supporting document presented in conjunction with the first opposition in its analysis.

[2] The

court notes that the tenth cause of action for discrimination based on race is solely asserted by Marquez against Defendants, thus not subject to this motion pertaining Davis. (Complaint, ¶¶ 88-92.)

[3] In

opposition, Davis argues that there was an adverse employment action based on her sexual orientation as there was a drastic reduction of her hours and she was constructively terminated as her continued employment was intolerable. (Opp., at p. 16.) The court notes that these allegations are not part of her

ninth cause of action as pled in the complaint. (Complaint, ¶¶ 84-87.) As such, the court will not consider such arguments. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258 ["The complaint limits the issues to be addressed at the motion for summary judgment[/adjudication]. "Thus, a 'defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.' [Citation.]"].) However, as found above, the court finds that Moving Defendants demonstrated a nondiscriminatory reason for Davis' termination due to Crush's bankruptcy.